The Commission is not empowered to inquire into any matter after the expiry of one year from the date on which the act constituting violation of human rights is alleged to have been committed. In other words, it can look into a matter within one year of its occurrence.

The Commission may take any of the following steps during or upon the completion of an inquiry:

1. It may recommend to the state government or authority to make payment of compensation or damages to the victim;

2. It may recommend to the state government or authority the initiation of proceedings for prosecution or any other action against the guilty public servant;

3. It may recommend to the state government or authority for the grant of immediate interim relief to the victim;

4. It may approach the Supreme Court or the state high court for the necessary directions, orders or writs.

From the above points, it is clear that the functions of the commission are mainly recommendatory in nature. It has no power to punish the violators of human rights, nor to award any relief including monetary relief to the victim. Notably, its recommendations are not binding on the state government or authority. But, it should be informed about the action taken on its recommendations within one month.

The Commission submits its annual or special reports to the state government. These reports are laid before the state legislature, along with a memorandum of action taken on the recommendations of the Commission and the reasons for non-acceptance of any of such recommendations[4].

Human Rights Courts

The Protection of Human Rights Act (1993) also provides for the establishment of Human Rights Court in every district for the speedy trial of violation of human rights.

These courts can be set up by the state government only with the concurrence of the Chief Justice of the High Court of that state.

For every Human Rights Court, the state government specifies a public prosecutor or appoints an advocate (who has practiced for seven years) as a special public prosecutor for the purpose of conducting cases in that court.

2019 Amendment Act

The various provisions or features of the Protection of Human Rights (Amendment) Act, 2019, are as follows:

1. It provided that a person who has been a judge of the Supreme Court is also made eligible to be appointed as Chairperson of the National Human Rights Commission (in addition to the person who has been the Chief Justice of India).

2. It increased the number of members of the National Human Rights Commission (who are to be appointed from amongst persons having knowledge or practical experience with respect to human rights) from two to three out of which at least one has to be a woman.